THE EIGHTH JUDICIAL CIRCUIT OF FLORIDA
ADMINISTRATIVE ORDER NO. 1.20

E-FILING FOR ATTORNEYS IN CIVIL CASES

In order to address the orderly transition to mandatory e-filing in the Civil, Probate, Small Claims, and Family divisions in the Eighth Judicial Circuit as mandated by the Florida Supreme Court,

IT IS ORDERED:

PROPOSED ORDERS

1. Proposed orders, proposed judgments and other documents to be entered by the Court shall be submitted to the Court pursuant to that division's procedures as established on the Circuit's website, www.circuit8.org. If proposed orders, proposed judgments and other documents intended for entry by the Court are erroneously submitted through the e-Portal, the Clerk is directed to place the filing that contains those documents in the e-Portal Pending Queue and advise the filer, pursuant to this order, to remove the proposed order or judgment and resubmit the filing.

ENVELOPES

2. Envelopes for service of orders and other documents shall be provided as follows:

   a. **Envelopes for Service by the Court** - When mail service is required, envelopes for service of orders shall be provided directly to the Court with paper copies of the order to be conformed, per Administrative Order 1.07, E-Mail Authorization and Envelopes. The case number shall be indicated on the outside of each envelope.

b. **Envelopes for Service by the Clerk -** Envelopes for service of documents by the Clerk of Court, whether those documents are e-filed or filed in paper form, shall be provided by mail or hand delivery to the Clerk's Office. The case number shall be indicated on the outside of each envelope.

DOCUMENT SUBMISSION STANDARDS

3. The Clerk of Court shall place nonconforming e-filing transactions in the e-Portal Pending Queue, which must be corrected by the filer within five (5) days.

a. **Contents of E-filing Transactions** - A single e-filing transaction may include multiple documents for filing in the same case. However, a single e-filing transaction shall not include documents for filing in different cases. Documents to be e-filed in different cases must be submitted in different e-filing transactions. Additionally, if a single document is to be filed in two or more cases, the document must be submitted in a separate e-filing transaction for each case.

b. **Formatting of E-filed Documents** - E-filing of combined documents (two or more documents scanned as a single item) is not permitted. Each e-filed document must be submitted as a distinct item.

c. **E-filing Payments** - Any payment required for an e-filing transaction must be made through the e-Portal. Payment for an e-filing transaction shall not be mailed or delivered to the Clerk's Office.

CIVIL COVER SHEET

4. A civil or family cover sheet must be e-filed as an individual document with each e-filed complaint or petition that initiates a new case. Florida Rule of Civil Procedure 1.100(c)(2) requires that a case be abated until the cover sheet is filed.

CONFIDENTIAL INFORMATION

5. The Notice of Confidential Information must be filed in the same transaction as the document containing confidential information, but must be filed as a separate document.

EXEMPTIONS FROM E-FILING

6. If an attorney who is not exempt from e-filing improperly submits a court document in paper form to the Clerk for filing, the Clerk's Office shall advise the Court by noting the improper submission on the case docket.

PERMITTED SUBMISSION OF PAPER DOCUMENTS

7. There is no need to file the paper document once the same document is e-filed, unless the Clerk's Office is required to retain the document in paper form. The Clerk's Office shall retain all documents in paper form as required by statute or rule for the time period specified by rule or statute.

TECHNICAL FAILURE

8. Pursuant to Rule 2.525(e), Florida Rules of Judicial Administration, any attorney, party, or other person who elects to file any document by electronic transmission shall be responsible for any delay, disruption, interruption of the electronic signals, and readability of the document, and accepts the full risk that the document may not be properly filed with the Clerk as a result. See Florida Supreme Court Standards for Electronic Access to the Courts, Version 7.0, Section 3.2 (modifications adopted February 2012.)

9. This Order replaces Administrative Order 1.20 (v1), "E-Filing for Attorneys in Civil Cases," dated March 28, 2013.

ORDERED on this 29th day of April, 2013.

Robert E. Roundtree, Jr., Chief Judge